

		Moving party to give notice.
104	County of Orange v. Nautilus Insurance Co., 2026-01547503	Motion for Leave to File Amended Complaint – GRANTED Motion for Judgment on the Pleadings – DENIED AS MOOT Plaintiff County of Orange moves for leave to file a first amended complaint against defendant Nautilus Insurance Company. Plaintiff is suing Defendant for failing to defend Plaintiff in a prior personal injury suit filed by Miguel Angel Moran regarding an incident that occurred on January 1, 2022 at or near the sidewalk located at 1928 S. Grand Avenue, Santa Ana. Plaintiff leases the subject property from the owner, Centurion Partners Santa Ana, LLC. After filing the action, Defendant informed Plaintiff that even though Plaintiff is named an additional insured under the landlord's CGL insurance policy, the address set forth on the endorsement is 888 N. Main Street, Suite 159, Santa Ana. Plaintiff argues that this mistake was made by either or both the landlord and Defendant, and that Plaintiff was never notified of the mistake. Once Plaintiff was advised of Defendant's position, it filed the instant motion for leave to amend to seek reformation to change the address on the endorsement to the correct address. Defendant argues the motion for leave to amend should be denied because it is barred by the statute of limitations, as the policy was entered into on or around February 23, 2021 and Plaintiff did not file this action until February 11, 2026. Defendant further argues that the additional claim for breach of the implied covenant of good faith and fair dealing is unnecessary and duplicative of the bad faith claim in the original pleading. Defendant contends that these defects cannot be cured by any further amendment.

		The statute of limitations period for an action for relief on the ground of fraud or mistake is three years. (Code Civ. Proc., § 338(d).) “The cause of action in that case is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) In order for a claim to be barred by the statute of limitations, the defect must clearly appear on the face of the complaint; “ ‘it is not enough that the complaint shows merely that the action may be barred.’ ” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316.) In the proposed first amended complaint, the reformation cause of action alleges that Plaintiff was not aware of the mistaken address in the endorsement and the mistake does not truly express the intention of the parties. These allegations do not establish on the face of the proposed first amended complaint that the reformation cause of action is barred by the applicable statute of limitations. Thus, pursuant to the policy of great liberality in permitting amendments absent prejudice, leave to amend is GRANTED. Plaintiff is ORDERED to file and serve its amended complaint within 10 days of the date of this order. Defendant’s Motion for Judgment on the Pleadings is DENIED as MOOT in light of the Court’s granting Plaintiff leave to amend. Plaintiff to give notice.
105	De La Torre v. CalOptima Health, 2025-0146323	Motion to be Relieved as Counsel – GRANTED Attorney Bijan Mohseni seeks an order relieving them from acting as counsel of record for Plaintiff Melissa De La Torre. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362. All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney